



(800) 687-0008
WWW.ASCOEQ.COM

AGREEMENT NO RSA152916	DATE 09-15-2025
PAYMENT TERMS Net 30	

ASCO EQUIPMENT
12805 U.S. HWY 290 E
MANOR TX 78653
(512) 272-8922

CUSTOMER NO BP0122790
CUSTOMER PO NPOR

RENTAL AGREEMENT
(RENT TO RENT)
THIS IS NOT AN INVOICE: DO NOT PAY FROM THIS DOCUMENT

INVOICE TO:

TERRAFIRMA CONSTRUCTION
8704 CANOPY OAKS DR
FT SMITH AR 72903-6658

SHIP TO:

12500 NUTTY BROWN RD
AUSTIN TX 78737

SALESPERSON	: Rocky Garcia	DELIVERY TERMS	:
CONTACT	: ANGELO KIRCHON 609-923-2117		
RENTAL BEGINS	: 09/16/2025		

SET	UNIT	RATE	TOTAL	PERIOD
10	EQ0197223 HINO 268A 2K WATER TRUCK Miscellaneous MODEL:WATERTRUCK S/N:5PVNJ8JG3L5S50207	3,350.00	3,350.00	MONTHLY
			625.00	DAILY
			1,720.00	WEEKLY
10	PDC PICKUP AND DELIVERY CHARGES EQ0197223 S/N: 5PVNJ8JG3L5S50207	175.00	350.00	

Fuel cost is \$10.00 per gallon. The term MONTHLY denotes 4 weeks. Shift hours allowed as 8 daily, 40 weekly, and 160 in a 4-week rental. Customer represents and warrants to ASCO that the person signing this contract on behalf of Customer is authorized to do so. Each person signing this contract will be presumed by ASCO to have authority to execute this contract. If the Customer obtains an invoice for the rental of equipment as described herein, and if the Customer claims that this contract has not been signed by an authorized representative Customer agrees to notify ASCO within 10 days from the date of the invoice that the person signing this contract did not have authority to do so. Failure of Customer to contact ASCO within 10 days from the date of the invoice issued pursuant to this contract will conclusively establish the authority of the person signing this contract. Rent continues on weekends and holidays. Rent continues until equipment is returned by customer or customer calls to stop rental. If rental is stopped by telephone, customer is solely responsible for obtaining from ASCO a release number for each piece of equipment on which the rent is being stopped.

Signed by:

19C32F64589A42A...

9/16/2025

Signed by:

FD681B6AFE4D44C...

9/16/2025

Brian Scott
ASCO EQUIPMENT
DATE
PRINTED NAME

CUSTOMER ACCEPTANCE
Angelo
DATE
PRINTED NAME



...ment described on the front of this agreement (these terms and conditions include the information on the front of this agreement and the terms and conditions stated within the Customer's credit application, all of which are part of this agreement):

1. **Payment of Rental.** Customer will pay Associated Supply Company, Inc. ("Lessor") rental at the rate shown for the period stated, or period of possession by Customer, whichever is greater, promptly in advance regardless of any claimed defense or offset Customer may assert. Rental rates provided in this agreement are single shift straight rates based on: 1 day = 24 hours to Customer and 8 hours allowed on the equipment; 1 week = 7 days to Customer and 40 hours allowed on the equipment; 4 weeks = 28 days to customer and 160 hours allowed on the equipment. If used longer than the specified hours in any specific period the customer agrees to pay the applicable overtime charges. Rates for double and triple shift operations are available upon request.

2. **Transportation and Return of Equipment.** Customer will pay for transportation of equipment to and from the office of Lessor on demand. Customer will return equipment to the office of Lessor at the end of the rental period at the expense of Customer and in as good of condition as when received, ordinary wear and tear only excepted, and to pay for any loss or damage. The customer agrees that the value of the equipment is the sales price stated in Lessor's most recently published Sales Price List, and said value will be provided to customer upon request.

3. **Operation of Equipment.** In operating the equipment, Customer will at all times apply sound principles of safety, training, inspection, maintenance, application & operation and will comply with all manufacturer's operations & safety guidelines. Customer will: (i) operate the equipment within its capacity; (ii) utilize the equipment in a careful and proper manner and to permit the equipment to be operated only by persons trained in the operation thereof; (iii) cause oil, water, lubricants and mechanical matters to be carefully checked and maintained in proper amounts, (iv) furnish at Customer's own expense all fuel, oil, lubricants and other operation supplies as well as perform or have performed, at Customer's expense, all daily preventative maintenance services as prescribed in the equipment maintenance manual; (v) cause the operation of the equipment to be immediately stopped and Lessor notified whenever any mechanical trouble or difficulty develops or the equipment is believed unsuitable for the particular use.

4. **Sub-renting and Location of Equipment.** Unless written consent is first given by Lessor, the equipment will not be sub-rented or used by any party other than Customer. The equipment will remain at the location stated in this agreement. If the equipment is removed from the stated location, hidden from the Lessor, not made available to Lessor for inspection at any and all times during business hours, or if Lessor is for any reason unable to locate the equipment, the Lessor may cancel and terminate this agreement by written notice to the Customer; and, Customer waives all claims for loss, expense or damage caused by such termination. After Lessor gives notice of termination, Lessor will have the sole right to possession of the equipment and Customer agrees to peacefully surrender possession to Lessor; and, any possession of the equipment by Customer subsequent to such termination will require Customer to pay to Lessor an amount equal to the rents being charged for the use of the equipment under this agreement. Notice of termination will be deemed delivered to the Customer if delivered personally to Customer or mailed to Customer at the address stated in this agreement.

5. **Default.** Customer will be in default under this agreement if (a) Customer fails to pay rent or any other amount when due under the terms of this agreement, (b) Customer fails to perform, observe or keep any provision of this agreement, (c) Customer becomes "insolvent" (as defined in this agreement), or Lessor anticipates that Customer may become insolvent or that Customer may otherwise become in default, or (d) any execution or any other writ of process is issued in any action or proceeding against the Customer whereby the equipment may be seized, taken or detained. If Customer is in default, Lessor may do any one or more of the following: (1) terminate the rental period, (2) declare the entire amount of rent and other charges owing under this agreement to be immediately due and payable and commence legal action for the amounts claimed due, (3) take possession of any or all of Lessor's equipment then rented to Lessee, without demand or notice except as may be required by law, wherever the same may be located, without any Court Order or other process of law; and, Customer waives any and all damages and losses, physical and pecuniary, occasioned by such taking of possession; or (4) pursue any other remedies available at law or in equity. Customer may be considered "insolvent" if Customer (i) is generally not paying, or is unable to pay, or admits its inability or anticipated inability to pay its debts as such debts become due; or (ii) makes an assignment for the benefit of creditors, or petitions or applies to any tribunal for the appointment of a custodian, receiver or trustee for it or a substantial part of its assets; or (iii) commences any proceeding under any bankruptcy, reorganization, arrangement, readjustment of debt, dissolution, or liquidation law or statute of any jurisdiction, whether now or hereafter in effect; or (iv) has had any such petition or application filed or any such proceeding commenced against it in which an order for relief is entered or an adjudication or appointment is made. Any repossession of the equipment or any other action which the Lessor may take will not negate nor diminish the Customers liability for the full performance of all obligations to be performed by the Customer under this agreement. Lessor's remedies are cumulative, and may be exercised concurrently or separately. Termination of this agreement will not release the Customer from any rents that are past due, any damages that have been sustained by the equipment, or any other obligation of the Customer. Customer agrees to pay all reasonable collection, attorney fees, court costs and other expenses involved in the collection of any of the charges or indebtedness due hereunder or in enforcement of the provisions of this agreement or Lessor's rights hereunder. **Exclusive jurisdiction and venue for any litigation between Customer and Lessor is in any district court or county court of law of Lubbock County, Texas. CUSTOMER HEREBY UNCONDITIONALLY WAIVES ITS RIGHTS TO A JURY TRIAL.**

6. **Interest on Delinquent Amounts.** If Customer fails to pay any part of the rent or any other sum owing under this agreement within ten (10) days after the due date thereof, Customer will pay to Lessor interest on such delinquent payment from the expiration of said ten (10) days until paid at rate of 18% per annum or the highest lawful contract rate applicable to this transaction, whichever is less.

7. **Insurance.** Customer will carry a commercial general liability policy issued on an occurrence basis (which includes coverage of the equipment rented herein and the operation thereof) and having limits of coverage of not less than \$1,000,000.00 per occurrence, \$1,000,000 general aggregate and \$1,000,000 personal and advertising injury. Such insurance will insure both Lessor and Customer and be written by companies reasonably satisfactory to Lessor. Customer will furnish certificates to Lessor naming Lessor as an "Additional Insured" and Loss Payee" and stating coverage includes "Boom overload" and "Boom Collapse." Customer will also maintain a Business Auto Policy having a limit of coverage of not less than \$1,000,000, and worker's compensation and employment liability insurance meeting the statutory limits.

8. **Loss Damage Waiver.** NOTICE: This agreement offers an optional loss damage waiver (LDW) for an additional charge to cover your responsibility for loss of or damage to the equipment rented under the terms of this agreement. You do not have to purchase this coverage. Before deciding whether to purchase this loss damage waiver, you may consider whether your insurance policies afford you coverage for loss of or damage to the equipment rented and the amount of the deductible you would pay under your policies. The total charge for the LDW is stated on the front side of this agreement. Loss Damage Waiver (LDW) is not insurance. For the additional charge shown on the front of this agreement, Lessor offers the LDW to limit the Customer's responsibility for certain damages to the equipment rented from Lessor and the repair costs related to such damages. **The LDW excludes and will not cover: (a) loss of or damage to the equipment that is caused by an unexplained disappearance or abandonment of the equipment; (b) damage that is intentionally caused by the customer; or (c) damage that results from the customer's willful or wanton misconduct.** Lessor interprets "damage that is intentionally caused by Customer" and "damage that results from Customer's willful or wanton misconduct" to include the following (all of which are also excluded from the LDW): (1) damage resulting from overloading or exceeding manufacturer's rated capacity or other such improper use of the equipment; (2) damage to tires or tubes including blowouts, flats, bruises, cuts, punctures or tears; (3) Damage resulting from a lack of or improper daily basic lubrication or servicing of the equipment including failure to maintain air filter cleanliness and proper hydraulic, cooling, oil and pressure levels; (4) Damage from wars, riots, strikes, civil commotion, radioactive or other hazardous material contamination or acts of God; (5) Damage from striking an overhead object; (6) Damage from loading, unloading or transporting of the equipment; (7) Damage or collapse of boom from overloading or from collision, including with a boom in motion; (8) Damage from or associated with rollover, upset or any type of submersion; (9) Damage caused by a person other than an authorized, trained or certified operator; (10) Damage caused by vandalism, fire, or malicious mischief; or (11) Damage caused by overspray from paint or any other substance that adheres to the equipment and cannot be removed by high pressure water. In the event that under applicable Texas law any one or more of the exclusions described above are determined to be not within the authorized exclusions permitted by law (including but not limited to Section 93.006 of the *Texas Business and Commerce Code*) then this agreement will be deemed to be automatically reformed to delete such prohibited exclusion, without the necessity of the execution of any new documents, so as to comply with the applicable law; and if any such exclusion is prohibited under applicable law, Lessee's sole remedy will be the coverage of such damage under the LDW. If the equipment is determined by Lessor to be lost, stolen, destroyed or damaged beyond repair, Customer will pay to Lessor in cash the value of such equipment at the time that it was received by Customer (as "value" is defined above in Paragraph 2); and, upon such payment this rental agreement will terminate with respect to such item of equipment so paid and Customer will be entitled to possession of such item of equipment as-is, where-is with all faults without warranty, express or implied. *Lessor does not charge for or provide LDW on any licensed vehicles or cranes of any type.*

9. **Markings and Alterations.** If Lessor supplies Customer with labels, plates or other markings indicating the ownership or manufacture of the equipment, Customer will affix and keep the same in the location required by Lessor. Without the prior written consent of the Lessor, Customer will not make any alterations, additions, or improvements to the equipment. All additions and improvements of whatsoever kind or nature made to the equipment will belong to and become the property of the Lessor on the termination of this agreement.

10. **No Liens; Compliance with Laws.** Customer will keep the equipment free and clear of all levies, liens and encumbrances and will pay all license fees, registration fees, assessments, charges, and taxes which may be imposed on ownership, leasing, renting, sale, possession, or use of the equipment, excluding however all taxes on or measured by the Lessor's income. Customer will pay any sales, property, or use tax to Lessor on demand. Customer will comply with all laws, ordinances, and regulations relating to the possession, use, or maintenance of the equipment.

11. **Acceptance of Equipment.** Customer accepts the equipment in its present "**as is**" condition and agrees that it has inspected it to Customer's own satisfaction, and such equipment is in proper operating order. Customer acknowledges that the equipment has been selected by Customer for the purpose it is to be used without reliance on Lessor, and that Lessor has not selected the equipment rented and is not responsible for the suitability of the equipment for the use Customer intends. **Customer agrees that Lessor is not liable for and makes no warranties, either express, implied, or by operation of law, as to any matter whatsoever including, without limitation, the condition of the equipment, its merchantability, or its fitness for any particular purpose, and Customer releases Lessor to the fullest extent allowed by law from any warranties, express, implied or arising by operation of law. There are no warranties which extend beyond the description of the equipment on the front of this agreement.**

12. **Indemnity.** *To the fullest extent permitted by law, Customer agrees to indemnify, defend and hold Lessor harmless, and any of its officers, directors, agents, servants or employees (collectively referred to herein as the "Company") harmless from and against any and all liability, claims, loss, damage or costs, including but not limited to attorney's fees, loss of profit, business interruption or other special or consequential damages, damages relating to property damage, bodily injury, or damages relating to wrongful death) arising out of or related to the operation, use, possession or rental of the equipment, whether caused in part by the negligence of Company. This paragraph is not intended to indemnify the Company for claims caused by the sole negligence or willful misconduct of the Company.*

13. **Miscellaneous.** No covenant or condition of this agreement may be waived except by the written consent of Lessor. Any failure of Lessor to insist upon the strict performance by Customer of any terms and conditions of this agreement will not be construed as a waiver of Lessor's right to demand strict compliance. This agreement constitutes the entire agreement between parties and supersedes any prior understandings or written or oral agreements between the parties relating to this transaction. This agreement may not be amended, altered, or changed except by a written agreement signed by the parties hereto. Service of all notices under this agreement will be sufficient if given personally or mailed to the party involved at its respective address shown on the front of this agreement. This agreement will be construed under and in accordance with the laws of the State of Texas. If any one or more of the provisions contained in this agreement is for any reason held to be invalid, illegal, or unenforceable, in any respect, such invalidity, illegality, or unenforceability will not affect any other provision, and this agreement will be construed as if such invalid, illegal or unenforceable provision had not been contained herein.

14. **Like-Kind Exchange:** If the rental equipment described herein is purchased by Customer, Customer agrees that Lessor may, without Customer's consent, assign its rights under the sales contract to ASCO Exchange, LLC (or any other entity selected by Lessor), and such assignment will permit ASCO Exchange, LLC (or other entity selected by Lessor) to sell the rental equipment and, if applicable, to purchase any trade-in-property.

EQUIPMENT INSPECTION REPORT

CUSTOMER: TERRAFIRMA CONSTRUCTION



Associated Supply Company, Inc.

CONTRACT NUMBER: RSA152916

MAKE: HINO **MODEL** 268A **RN #:** EQ197223

JOBSITE LOCATION: 12500 NUTTY BROWN RD ATX 78737

CONTACT NAME & NUMBER

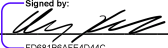
ALL OPERATOR, SAFETY AND SERVICE MANUALS RECEIVED	YES	X	NO
ALL OPERATING/WARNING DECALS ARE READABLE AND HAVE BEEN POINTED OUT TO ME	YES	X	NO
ALL GUARDS ARE IN PLACE AND POINTS OF DANGER PROTECTED	YES	X	NO
EQUIPMENT HAS BEEN MODIFIED OR ALTERED	YES		NO X
ROPS SYSTEM IS IN PLACE	NA	YES X	NO
ROPS REJECTED BY CUSTOMER	NA	YES	NO X

CONDITION TO CUSTOMER (LAST PM _____)(HRS 13168 _____) CONDITION FROM CUSTOMER (HOURS: _____)

BRAKES OK	ENGINE OK	BRAKES	ENGINE
HEADLIGHTS OK	FLUID LEVELS OK	HEADLIGHTS	FLUID LEVELS
TAILLIGHTS OK	HYDRAULICS OK	TAILLIGHTS	HYDRAULICS
GAUGES OK	LEAKS NONE	GAUGES	LEAKS
WINSHIELD WIPERS OK	CYLINDERS OK	WINSHIELD WIPERS	CYLINDERS
GLASS OK	BODY/FRAME OK	GLASS	BODY/FRAME
B/U ALARM OK	STEP(S) OK	B/U ALARM	STEP(S)
HEATER/AC OK	FENDER(S) OK	HEATER/AC	FENDER(S)
SEAT OK	TEETH OK	SEAT	TEETH
MIRROR(S) OK	OUTRIGGER(S) OK	MIRROR(S)	OUTRIGGER(S)
PAINT OK	DOOR(S) OK	PAINT	DOOR(S)
BUCKET OK	HOSES OK	BUCKET	HOSES
CUTTING EDGE OK	COUPLER OK	CUTTING EDGE	COUPLER
ENGINE PANELS OK	ARM LOCK OK	ENGINE PANELS	ARM LOCK
CAB/ROPS OK	JOYSTICK(S) OK	CAB/ROPS	JOYSTICK(S)
MANUAL(S) OK	BATT'Y MFR. OK	MANUAL(S)	BATT'Y MFR.
KEY(S) 1	FIRE EXT.	KEY(S)	FIRE EXT.
LF TIRE/TRACK OK	AUGER	LF TIRE/TRACK	AUGER
RF TIRE/TRACK OK	BIT(S)	RF TIRE/TRACK	BIT(S)
LR TIRE OK	BIT(S)	LR TIRE	BIT(S)
RR TIRE OK	BREAKER	RR TIRE	BREAKER
FUEL/DEF FULL	FORKS	FUEL/DEF	FORKS

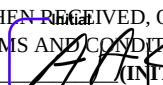
OPERATOR TRAINING REQUIREMENT SELECT #1 OR #2 1

1) LESSEE AGREE HE HAS RECEIVED AND UNDERSTANDS THE COMPLETE AND PROPER SAFETY, OPERATOR, INSPECTION AND MAINTENANCE INSTRUCTIONS ON THIS RENTAL EQUIPMENT AND WILL INSURE ONLY QUALIFIED AND PROPERLY TRAINING AND/OR CERTIFIED PERSONNEL SHALL OPERATE THIS EQUIPMENT

ACCEPTED BY:  9/16/2025 **(DULY AUTHORIZED)**

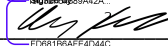
2) LESSEE TESTIFIES HE IS A QUALIFIED, TRAINED AND/OR CERTIFIED OPERATOR, KNOWLEDGEABLE IN THE COMPLETE AND PROPER SAFE OPERATION, INSPECTION AND MAINTENANCE OF THIS EQUIPMENT AND HEREBY REFUSES SAFETY, OPERATOR, INSPECTION AND MAINTENANCE INSTRUCTIONS BY THE LESSOR. LESSEE AGREES TO INSURE ONLY QUALIFIED AND PROPERLY TRAINED PERSONNEL SHALL OPERATE THIS EQUIPMENT

ACCEPTED BY: _____ **(DULY AUTHORIZED)**

CUSTOMER AGREES TO RETURN THIS EQUIPMENT TO ASSOCIATED SUPPLY CO., INC. IN AS GOOD CONDITION AS WHEN RECEIVED, ORDINARY WEAR AND TEAR ONLY EXCEPTED, AND TO PAY FOR ANY LOSS OR DAMAGE. CUSTOMER AGREES THAT ADDITIONAL TERMS AND CONDITIONS SET FORTH ON THE REVERSE SIDE HEREOF ARE INCORPORATED BY REFERENCE AND CONSTITUTE A PART OF THIS CONTRACT.  (INITIALS)

CHECKED OUT BY:  **DATE:** 9/16/2025

CHECKED IN BY: _____ **DATE:** _____

AGREED & ACCEPTED:  **DATE:** 9/16/2025

AGREED & ACCEPTED: _____ **DATE:** _____

**CUSTOMER ADD
NOTES AND
PICTURES IF
NECESSARY**







